DEALERSHIP AGREEMENT

THIS DEALERSHIP AGREEMENT (hereinafter referred to as the "Agreement") is made at _____, on this __ day of _____, 2016 by and between:

BENNETT, COLEMAN AND COMPANY LIMITED, a company incorporated under the Companies Act, 1956, having its registered office at The Times of India Building, Dr. D.N. Road, Mumbai 400 001, CIN No. U22120MH1913PLC000391 hereinafter referred to as the 'BCCL' (which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the ONE PART

AND

_____, a company incorporated under the Companies Act 1956, having its registered office at _____ (Hereinafter referred to as the "DEALER", which expression unless repugnant of the context thereof shall mean and include its heirs, executors, administrator and/or permitted assigns) of the ONE PART

The DEALER and BCCL shall be collectively called the "Parties" and individually as the "Party".

WHEREAS:

A. BCCL is in the business of printing and publishing newspapers and magazines including The Times of India, The Economic Times, Femina, Filmfare etc. and distributing such publications from one place to another from time to time.

B. The Dealer is engaged in the business of _____.

C. BCCL is interested in taking the services of a third party dealer to provide services required for the purposes of sale of its newspaper, magazines, periodicals and such other publications in areas designated to the Dealer by BCCL as may be decided from time to time.

D. Dealer has represented that it has necessary expertise skill, knowledge, experience, capability and infrastructure to provide the Vendor Services (defined hereinafter) and is in continuing business of providing such services and represents that it has all the requisite licenses under relevant laws and that it is in compliance of all relevant laws and regulations applicable to it.

E. Acting on the representations of the Dealer, BCCL has agreed to avail of the Vendor Services to be provided by the Dealer on such terms and conditions as may be agreed between the Parties herein.

NOW THIS DEED WITNESSETH AND IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS

1. APPOINTMENT AND SCOPE OF SERVICES

1.1 BCCL agrees to appoint the Dealer as its service provider for the sale of its publications, periodicals and such other publications (by whatever name called) covering areas designated by BCCL from time to time at such rates and discounts which is more particularly described in Annexure I to this Agreement and subject to the terms and conditions and procedures laid down herein (hereinafter referred to as the "Vendor Services"). The rates and discount at which such Vendor Services shall be provided the newspaper, magazines and periodicals is also more particularly described in Annexure I. The rates mentioned herein shall be amended mutually on case to case.

1.2 Notwithstanding clause 1.1 above, BCCL expressly reserves the rights to appoint one or more persons in addition to the Dealer to provide Vendor Services or such other similar

services, without giving any notice to the Dealer or assigning any reason whatsoever for such appointment

2. COMMERCIAL TERMS AND OBLIGATIONS OF THE DEALER:

2.1 The Dealer shall provide the Vendor Services:

a) with due care and skill and to the reasonable satisfaction of BCCL*;*
b) in a proper and efficient manner using that standard of skill, diligence, prudence and foresight that would reasonably be expected from a prudent, expert and experienced Dealer/ vendor; and
c) in compliance with all laws, regulations, standards, orders, notices, guidelines etc issued by any Court, Tribunal, Government or any other statutory authority, which the Dealer is legally required to comply; and
d) and act in good faith, in the best interests of BCCL and in a manner which is consistent with the maintenance of the business and goodwill of BCCL.

2.2 The Dealer shall maintain such adequate personnel as it deems fit as its staff as are required to carry out it's obligation under this Agreement and the Dealer shall be the sole person responsible for matters relating to their payment of salaries and related compliance with all relevant labour laws and other applicable statutes.

2.3 BCCL shall forward to the Dealer at its cost newspapers and publications by rail, air, motor or postal parcels as may be convenient to BCCL at the Dealer's risk to miscarriage/loss in transit etc.

2.4 BCCL shall send its bills for supplies for each month in the first week of the following month. The Dealer shall pay the amounts mentioned in the bill on or before 20th of the same month alongwith the duly signed bills, deducting therefrom expenses (if any) incurred to the Dealer as per this Agreement or as may be authorized by BCCL from time to time. . The remittances of the Dealer shall be in the form of bank drafts, postal orders or money orders and not by way of cheques.

2.5 All contingent charges such as postage, railway freight for forwarding parcels to the designated office/ place of business of the Dealer, money order, bank draft and postage entailed for legitimate purposes of assisting the Dealer to carry on its obligations under this Agreement shall be borne by BCCL and the Dealer may deduct such amounts actually borne by the Dealer from bill generated for a particular month subject to submission of all supporting documents such as original vouchers of the expenses incurred etc. Such expenses shall be deducted from the subsequent bills subject to satisfaction of BCCL.

2.6 BCCL shall be at liberty to fix and revise from time to time the discount to be allowed to the Dealer on his purchase of BCCL's newspaper/publications.

2.7 The Dealer shall undertake to arrange onward dispatch of parcels as directed by BCCL to other Dealers/parties in outstations served by S.T. service/motor/train etc from the Dealer's station and the Dealer would be given credit for the actual charges paid to the respective services on production of receipts.

2.8 The Dealer shall concentrate on efforts to improve the sale of BCCL's publications and newspapers in the area designated for the Dealer's operation and the Dealer shall not indulge in any unfair competition for sale in other areas .. This Agreement is liable to be terminated forthwith in case the Dealer commits a breach of this clause. BCCL's decision in this regard shall be considered to be final. Bindiang and irrevocable.

2.9 Any and all advertising material such as posters, boards, glow signs, shop banners and other publicity and promotion material if supplied to the Dealer by BCCL shall belong to BCCL at all times and cannot be used in any manner by the Dealer after the termination of this Agreement. The Dealer shall forthwith return such advertising material to BCCL in good condition at any time on demand. In the event the Dealer fails to return such material in good condition BCCL shall be at liberty to recover the value of such materials from the

Dealer's security deposit mentioned hereof and shall be entitled to any other remedial legal recourse as BCCL may deem fit.

2.10 The Dealer shall undertake to utilize all possible means to promote sales of BCCL's newspapers and publications and decrease in sale of newspapers and publications, save in exceptional circumstances, will be deemed as material breach of this Agreement by the Dealer.

2.11 For the purposes of efficient provision of the Vendor Services and to safeguard BCCL from the losses that may be incurred due to non-compliance of the terms of this Agreement by the Dealer, the Dealer agrees to pay an amount sufficient to cover the Dealer's bill for three months, calculated at rates fixed per copy of each publication as security deposit. BCCL shall be at liberty to ask for additional deposit as and when the total value of BCCL's supply goes up.

2.12 In case of delay or default of making payments of bills to BCCL, BCCL shall be at liberty to adjust outstanding payments from such security deposit at the Dealer's credit and recover interest at the rate prevailing on BCCL's bank borrowings on the dealer's outstanding over and above the Dealers deposit amount.

2.13 BCCL will also have the liberty to suspend the supplies to the Dealers till the position of outstanding payment is mitigated. The Dealer's security deposit is liable to be set off against the Dealer's dues to any of BCCL's other offices and any of Dealers outstandings with regard to M/s Bennett, Coleman & Company Limited or any of its group companies or subsidiaries.

2.14 The Security deposit as mentioned above will carry an interest at the rate of 7% per annum subject to the Dealers settling BCCL's monthly supply bills in full by the 20th of the following month regularly every month. Interest will be only paid on the amount of Dealers deposit after deducting the dues payable by the Dealer to BCCL as on the 20th of each month. BCCL will be at liberty to revise the interest rate of 7% as mentioned above at any time and at BCCL's sole discretion.

2.15 The Dealer shall be liable and responsible for and shall pay all taxes, levies, duties, assessments and deductions of every nature required by law in connection with the provision of Vendor Services under this Agreement. The Dealer further agrees to indemnify, defend and hold harmless BCCL and its respective shareholders, directors, officers, employees and agents, from any and all liability that may become due on account of any alleged non-payment of any or all of such taxes, levies, duties, assessments, or deductions, including, among other things, any penalties and interest thereon assessed by any federal, state or local government authority against BCCL and in general all actions, claims, demands, costs and expenses including attorney's fees incurred in defense of any such assessment.

2.16 In the event of any loss or damage to the cargo/ consignment while in the physical custody of the Dealer, the Dealer agrees to indemnify and hold BCCL harmless from any losses, claims, damages, liabilities, judgments, fines, obligations, expenses that BCCL may at any time become subject to or liable for by reason of such loss or damage to the product. The Dealer agrees to provide the appropriate documentation (i.e. damage certificate) to BCCL for claiming the damage from their insurance company.

3. REPRESENTATION AND WARRANTIES OF THE DEALER

3.1 It has the necessary power to execute, deliver and perform its obligations under the Agreement and all necessary corporate, shareholder and other sanction licenses, approvals and permissions have been taken to authorize such execution, delivery and performance.

3.2 The execution, delivery and performance of its obligations under the Agreement, do not and will not contravene any law, regulation, order, judgment or decree applicable to it or conflict with or result in any breach or default under any agreement, instrument, regulation, license or authorization binding upon it or any of its assets.

3.3 There are no pending claims, actions, suits or proceedings against the Dealer affecting any of its assets and there has been no event or occurrence which in each case, might

reasonably be expected to have a material adverse effect on its ability to perform its obligations hereunder.

3.4 The Dealer warrants that it shall comply with all applicable laws including but not limited to labour laws and local laws for the purposes of this Agreement. The Dealer further warrants that it shall keep such books, records and documentary evidence as requested by BCCL from time to time.

3.5 BCCL shall be entitled to call for at any time a true and complete list of subscribers/customers at the Dealers station giving their full names and addresses and other necessary details as may be required by BCCL.

3.6 The Dealer agrees to indemnify and keep BCCL indemnified from any and all claims, actions, proceedings, losses or damages suffered by it on account of any false representation made by the Dealer under this Agreement or breach of any terms and conditions of this Agreement.

4. TERM AND TERMINATION

4.1 This Agreement shall be in force from the date of execution hereof unless otherwise terminated by either Party in accordance with this Agreement. This Agreement is renewable mutually upon discussion.

4.2 The terms of this Agreement shall continue to be binding on the Dealer irrespective of the changes in the constitution of the Dealer's firm and all the new partners shall be bound to ratify the terms of this Agreement.

4.3 The Parties agree that either Party may terminate this Agreement after giving thirty (30) days prior notice in writing of its intention to do so, without giving or ascribing any reasons for the same.

4.4 This Agreement may be forthwith terminated by BCCL in the event the Dealer commits any breach of its obligations or of any of the terms and conditions of this Agreement and schedules hereto and any representation and warranties agreed to hereupon, without any notice and the Dealer shall keep BCCL harmless of all losses, claims and damages that may occur in this regard.

4.5 In the event of termination due to breach on the part of the Dealer, BCCL shall be entitled to recover all amounts due and payable by the Dealer from the Security Deposit and forfeit the interest accrued therein to make good any losses, claims or damages. Dealer hereby agrees to forthwith return all advertising material, newspaper and other publications of BCCL upon termination of this Agreement and pay the amounts due to BCCL without any protest or demur.

5. INDEMNITY

5.1 The Dealer agrees to indemnify and keep BCCL harmless and indemnified from any and all claims, costs, suits, claims, actions, proceedings, losses, demands or damages suffered by BCCL or its representatives on account of breach of any of the terms and conditions of this Agreement or representation and warranties given herein or contravention of any applicable laws, rules and regulations by the Agency.

5.2 The Dealer provider shall not be liable for any indirect, special, incidental or consequential damages including without limitation, loss of goodwill or profits.

6. GOVERNING LAW AND ARBITRATION

6.1 This Agreement shall be governed by the law of India and shall be subject to exclusive jurisdiction of Mumbai Courts.

6.2 Any and all claims, disputes, controversies or differences arising between the Parties out of or in relation to or in connection with this Agreement or with a breach thereof, shall be referred to the sole arbitration by authorized personnel of BCCL in accordance with The Arbitration and Conciliation Act, 1996 as amended up to date and the parties agree to

abide by the decision of the arbitrator and the same shall be final and binding on both the parties.

6.3 The parties also agree to empower the arbitrator to grant order on Interlocutory applications, pass interim award, successive awards on successive references and also agree to abide by the orders passed by the arbitrator.

6.4 In case of death of arbitrator/s appointed by the party or the arbitrator/s expressing their inability to continue to act as arbitrator/s or resigns or becomes incapable to acting, the vacancy shall be filled up by any other person appointed by BCCL for this purpose and the proceedings shall be continued.

6.5 The time stipulated for completion of arbitration proceedings before the arbitrator is two years as agreed by both the parties.

6.6 Each party shall bear its respective cost of arbitration.

7. MISCELLANEOUS

7.1 BCCL reserves the right to add, amend or delete or make changes in respect of the aforesaid terms from time to time without the Dealers concurrence.

7.2 This Agreement shall not be transferable and or/ assigned by the Dealer in favor of any third party without the written consent of BCCL.

7.3 Notwithstanding the above clause, BCCL shall have the right to assign its rights and obligations under this Agreement to any subsidiary, associate, affiliate or group company of BCCL.

7.4 Each Party shall hold any and all confidential information on the business of the other Party acquired by reason of or in connection with this Agreement in confidence even after termination of this Agreement.

7.5 This Agreement constitutes the entire agreement between the Parties hereto in relation to its subject matter and supersedes all prior agreements and understandings whether oral or written with respect to such subject matter and no variation of this Agreement shall be effective unless reduced to writing and signed by or on behalf of each Party.

7.6 The Dealer hereby agrees that it will be solely liable for compliance of all the labour laws including liability to contribute under the provisions of the Employees Provident Fund Act and the Scheme framed there under and Employees State Insurance Act and the scheme framed there under or any other statutory liabilities in respect of the employees and workers employed by the Dealer. In no event shall BCCL be responsible or obliged to absorb such personnel or provide them with salaries/ wages as the case may be.

7.7 The Parties agree and confirm that there is no principal agent relationship that exists between the Parties and that the Parties shall deal with one another on a principal to principal basis and as independent contractors within their respective rights and obligations as set out under this Agreement and within the overall scope of this Agreement. Neither Party shall have any right to bind the other through its actions and representations without prior approval of the other.

7.8 No departure from the terms of this Agreement shall obligate any party to permit any subsequent departure and no waiver of any of the provisions of this Agreement shall be deemed to be a waiver thereafter of any such provision or of any succeeding breach of any such provision.

7.9 All notices given pursuant to this Agreement shall be in writing and shall be sent by facsimile, or electronic mail, or registered pre-paid post, or hand delivery at the Parties' addresses provided herein above or such other address(es) as may be intimated by the Parties from time to time.

7.10 In the event that any term, condition or provision of this Agreement is held to be in violation of any applicable law, statute or regulation, the same shall be deemed to be

severable from the other provisions of this Agreement and this Agreement shall be construed as if such term, condition or provision had not been contained in this Agreement.

7.11 No Party shall be in default for breach of this Agreement by reason of any failure in its performance if such failure arises out of causes beyond the control or without the fault of negligence of such Party. Such causes include but are not limited to acts of God, of public enemy, civil commotion, wars, strikes, lockouts, labour unrest, sabotage, terrorism, riots, omissions or acts of public authorities, changes in law, regulations or policies of the Government, other acts of natural calamity or any other reason beyond the control of Parties. The Party suffering such force majeure event shall notify the other Party in writing within such time, as may be agreed to by both the Parties in writing, after the occurrence of such force majeure event and shall in every instance, to the extent reasonable and lawful under the circumstances, use its best efforts to remove or remedy such cause with all reasonable dispatch. Where such force majeure event continues for more than ten (10) days, the non- suffering Party shall be at liberty to terminate this Agreement by giving a written notice to the other Party specifying the reason and date of termination of this Agreement.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed as of the date first written above.

For **VENDOR**	For **Bennett Coleman & Company Ltd.**
Signature _____	Signature _____
Authorised Signatories	**Authorised Signatory**
Witness:	Witness:

ANNEXURE I
SCOPE OF VENDOR SERVICES AND RATES